

Commission for the Investigation of Abuse of Authority Act, 1991

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Amending Acts

1. Commission for the Investigation of Abuse of Authority (First Amendment) Act, 2048 2049.2.16 (29th May 1992)
2. Commission for the Investigation of Abuse of Authority (Second Amendment) Act, 2059 2059.4.30 (17th October 2002)

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3. Act Amending Some Nepal Laws, 2063 2063.6.28 (13th October 2006)
4. Republic Strengthening and Amending Some Nepal Laws Act, 2066 2066.1.7 (20th April 2009)
5. Act Amending Some Nepal Acts, 2072 2072.11.13 (25th February 2016)

Act No. 33 of the year 2048

An Act Made to Provide for the Functions, Duties, Powers and Procedures of the Commission for the Investigation of Abuse of Authority

Preamble: Whereas, it is expedient to make provision relating to the functions, duties, powers and procedures of the Commission for the Investigation of Abuse of Authority,

Now, therefore, Parliament has enacted this Act in the twentieth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter - 1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Commission for the Investigation of Abuse of Authority Act, 2048".

(2) It shall apply throughout Nepal Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066. and shall also apply to all Nepalese citizens wherever they may reside or be present outside Nepal Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by the Act Amending Some Nepal Acts, 2072.(a) "Constitution" means the Constitution of Nepal.

(b) "Commission" means the Commission for the Investigation of Abuse of Authority constituted under Article 238 of the Constitution Amended by the Second Amendment..

(c) "Commissioner" also refers to the Chief Commissioner of the Commission. Amended by the Second Amendment.(d) "Person holding a public office" means a person holding a position who, according to the Constitution, other prevailing law, or a decision or order of the relevant body or authority, is entitled to exercise any public authority or is required to perform any duty or discharge any liability, and the term also includes an office bearer or employee holding any position in a public body.

Amended by the Second Amendment.(e) "Public body" means the following bodies:-

(1) A company, bank or committee wholly or partially owned or controlled by the Government of Nepal, or a commission, corporation, authority, corporation, foundation, board, centre, council and other organized institutions of a similar nature established by the Government of Nepal under prevailing law,

(2) A university, college, school, research centre and other such academic or educational institutions operated by the Government of Nepal or receiving full or partial grants from the Government of Nepal,

(3) Local level constituted under the Local Self-Governance Act, 2054,

(4) An institution operated on the loan, grant or guarantee of the Government of Nepal,

(5) An institution fully or partially owned or controlled by an institution referred to in sub-clauses (1), (2), (3) or (4),

(6) Any other institution designated as a public body by the Government of Nepal by publishing a notice in the Nepal Gazette.

(f) "Investigating Officer" means a person designated under this Act to investigate and inquire into abuse of authority.

(g) "Improper conduct" means any act done by a person holding a public office as mentioned in Section 3.

Amended by the Second Amendment.(h) "Corruption" means an offence punishable under prevailing law relating to prevention of corruption.

(i) "Abuse of authority" means improper conduct under clause (g) or corruption under clause (h). Added by the Second Amendment.(j) "Court" means the court under sub-section (1) of Section 34. Added by the Second Amendment.

(k) "Competent authority" means the authority provided for in the prevailing law, agreement, or any such deed relating to the terms of service of a person holding a public office, and the term also includes the officer authorized to appoint, retire or supervise the work and actions of such a person. 3.

Improper Conduct: A person holding a public office shall be deemed to have committed improper conduct if he/she knowingly or negligently does any of the following acts:- (a) Refuses to do any work within his/her authority or does any work outside his/her authority, (b) Fails to follow the procedure that must mandatorily be followed while making any decision or order, (c) Uses his/her powers for a different purpose or act contrary to the relevant law, decision or order, (d) Exercises his/her discretionary power with mala fide intention or arbitrarily, (e) Unauthorizedly obstructs the work of other offices, officers or employees, or coerces such offices, officers or employees into doing any unauthorized act, (f) Evades his/her responsibility by not doing any work he/she is required to do and sending it to another office or other officer, Deleted by the Second Amendment (g) Fails to perform any official duty required to be performed according to the nature of his/her office, Added by the Second Amendment.(h) By exerting undue pressure or inducing an employee under his/her subordination or a person under his/her influence, makes them do acts favorable to him/her, or Added by the Second Amendment.(i) Abuses the immunity, facility or concession available to him/her by virtue of his/her official position. Chapter - 2 Provisions Relating to the Jurisdiction of the Commission Amended by the Second Amendment.4. Jurisdiction of the Commission: If any person holding a public office abuses his/her authority, the Commission shall investigate and inquire, initiate legal proceedings and carry out other related

actions according to this Act or other prevailing law. Provided, however, that:- (a) Amended by the Act Amending Some Nepal Acts, 2072. Matters written in the proviso to sub-article (1) of Article 239 of the Constitution shall be as per that provision. (b) Amended by the Act Amending Some Nepal Acts, 2072. The Commission shall not conduct any investigation, inquiry or related proceedings under this Act regarding the proceedings or decisions made in a meeting of the Legislature Parliament or its committees, or anything said or done by any member in such meetings, or any collective policy decisions made by the Council of Ministers or any of its committees, and the judicial proceedings of the court. Repealed by the Second Amendment.5. 6.

Regarding Commission taking action on improper conduct occurring in a public body: Deleted by the Second Amendment.Regarding improper conduct occurring in any public body, the Commission may forward a complaint received by it to the concerned public body or its higher body for action, with a directive to submit a report to the Commission, and such body shall provide information about the action taken and decision made in that regard to the Commission and the complainant. Provided, however, that if the Commission deems necessary, it may order a re-investigation into such complaint or take action itself. 7. Commission Not to Question the Exercise of Discretionary Power: Repealed by the Second Amendment.The Commission shall not conduct any proceedings under this Act regarding any work, action or decision made by any officer exercising his/her discretionary power Deleted by the Second Amendment. concerning any work or action. Provided, however, that nothing written in this Section shall prevent the Commission from taking action if it appears that such discretionary power was exercised with mala fide intention or arbitrarily. Chapter - 3 Provisions Relating to Improper Conduct 8. Complaint Regarding Improper Conduct: (1) Any person may file a complaint with the Commission regarding improper conduct that adversely affects public interest or concern; and in matters other than that, a person adversely affected by improper conduct may file a complaint. Provided, however, that if the person adversely affected by the improper conduct has died or is unable to file a complaint due to physical or mental disability, his/her representative or guardian may also file a complaint in that regard. (2) Even if no one files a complaint under sub-section (1), if the Commission receives information from any other source that someone has committed improper conduct adversely affecting public interest or concern, the Commission may conduct investigation, inquiry and other related proceedings under this Act. (3) When filing a complaint under sub-section (1), a complaint regarding improper conduct adversely affecting public interest or concern may be filed at any time; for other matters, the complaint must be filed within thirty-five days from the date of knowledge of such act. (4) When filing a complaint, the complainant must submit along with the complaint any evidence in his/her possession or that he/she can obtain in support of the complaint. 9.

Verification of Complaint: Amended by the Second Amendment.Except where the person adversely affected by improper conduct personally appears before the Commission and files a complaint, if a complaint is sent to the Commission by post or any other means, the Commission shall, within seven days of receiving such complaint, send a notice to the person adversely affected by improper conduct Amended by the Second Amendment. to appear before the Commission to verify the complaint. Provided, however, that if from the contents of the complaint it appears that the complaint is not based on facts, or is vague or misleading, the Commission may decide not to take any action in that regard. The Commission shall give notice of such decision as soon as possible to the person adversely affected by improper conduct Amended by the Second Amendment.. 10. Summoning Relevant Case Files and Documentary Evidence: If, based on the contents of the complaint and any evidence submitted by the complainant, there is reasonable cause to believe that a person holding a public office has committed improper conduct as mentioned in the complaint, the Commission may require relevant case files or documentary evidence to be submitted from relevant offices, officials or persons, and if there is any person who can provide important information in that regard, the

Commission may question such person. 11. Procedure Relating to Departmental Action: Amended by the Second Amendment.(1) If, from an investigation conducted by the Commission, it appears that a person holding a public office has committed improper conduct, or if there is reasonable cause to believe so, the Commission shall give notice to such person, specifying the details obtained from the investigation of the complaint lodged against him/her, setting a reasonable time limit to submit an explanation in that regard. (2) When giving notice under sub-section (1), the details of the complaint filed against the person holding a public office and the information obtained from the investigation in that regard, on what facts and grounds the accusation against him/her is based, and what kind of departmental action or punishment could be imposed if the accusation is proved, must also be specified. 12.

Sending Written Directive for Departmental Action: Amended by the Second Amendment.(1) If the person holding a public office fails to submit an explanation within the period specified in sub-section (1) of Section 11, or if the explanation submitted by him/her is not satisfactory to the Commission, the Commission may send a written directive to the competent authority to warn him/her or to impose departmental punishment, stating the reasons and grounds according to the gravity of the offense. (2) Upon receiving such a written directive under sub-section (1), the relevant competent authority shall, within three months, propose appropriate punishment and conduct departmental action according to prevailing law, and inform the Commission thereof. If action was initiated upon a complaint by someone, the complainant must also be informed. (3) If the relevant competent authority fails to take departmental action within the period specified in the directive sent under sub-section (2), except for reasonable cause, such authority shall be deemed to have committed improper conduct under this Act, and the Commission may take action against him/her. 12a.

Sending Written Directive for Other Necessary Actions: Added by the Second Amendment.If a person holding a public office, by committing improper conduct, Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066 , causes loss or damage to the Government of Nepal or a public body, the Commission shall send a written directive to the relevant body or authority to recover such loss or damage from the concerned person or to take other necessary actions deemed appropriate by the Commission. 12b.

Ordering Rectification of Adverse Consequences: Added by the Second Amendment.For the rectification of the adverse consequences arising from the improper conduct committed by a person holding a public office, according to prevailing law, the Commission may send a written directive to the relevant authority or body. Provided, however, that if an appeal lies against a decision made by a person holding a public office under prevailing law, the Commission shall not send a directive that would affect such decision. 12c. Duty to Inform

the Commission: Added by the Second Amendment.Upon receiving a written directive under Section 12a or 12b, the relevant body or authority shall, within three months from the date of receipt of such directive, take action according to the directive and inform the Commission thereof. Chapter - 4 Provisions Relating to Corruption 13.

Complaint Regarding Corruption: (1) On the basis of a complaint by someone regarding corruption, or information received by the Commission from any source, the Commission may conduct investigation and inquiry or initiate other proceedings under this Act. (2) Except as provided in Section 29, if the Commission does not initiate proceedings regarding corruption within five years of the commission of such act, no proceedings shall be initiated under this Act in that regard after that period. Provided, however, that no limitation period shall apply to corruption committed by embezzling government or public property or property of a public body owned by the Government of Nepal. 14. Preliminary Inquiry Regarding Corruption: (1) If, upon receipt of a complaint or report, or upon receiving information from any other source, the Commission has reasonable cause to believe that a person holding a public office has committed an offense of corruption, the Commission shall conduct a preliminary inquiry into the matter confidentially. (2) While conducting a

preliminary inquiry into an offense of corruption under sub-section (1), the Commission may exercise the powers conferred upon it under this Act regarding investigation and inquiry. 15. Requesting Explanation from Concerned Person if Information Appears Factual: If, while conducting a preliminary inquiry into an offense of corruption under sub-section (1) of Section 14, the complaint, report or information received by the Commission appears to be factual, the Commission may, mentioning a brief description of the accusation, request an explanation from the person committing such offense and other persons involved in such offense. Amended by the Second Amendment. 16. Detaining the Accused: (1) If there are sufficient grounds to believe that any person against whom proceedings have been initiated for corruption may destroy or conceal evidence or obstruct, hinder or adversely affect the Commission's proceedings, the Commission may detain such person by issuing an arrest warrant under prevailing law. (2) If an investigation into the matter concerning a person detained under sub-section (1) is not likely to be completed within twenty-four hours and it appears necessary to continue the investigation by keeping the person in detention, the Commission shall produce the person before a court and may only detain him/her after obtaining permission from the court.

When requesting permission from the court accordingly, the accusation against the detained person, the basis thereof, the reasons for needing to investigate him/her in detention, and if his/her statement has already been recorded, the contents of the statement must be clearly mentioned.

(3) A person produced before the court for permission to detain under sub-section (2) may, upon such appearance in court, submit a petition to the court for his/her medical examination.

(4) If permission to detain under sub-section (2) is requested, the court shall examine the relevant documents, consider whether the investigation is proceeding satisfactorily, and if it is found to be proceeding satisfactorily, may grant permission to detain for up to a maximum of six months, not exceeding one month at a time.

(5) When a request is made for extension of detention under sub-section (4), the detained person may, if he/she so desires, submit a petition to the relevant court stating the reasons and grounds why he/she should not be kept in detention. Amended by the Second Amendment. 17. Automatic Suspension: If a person holding a public office is detained by the Commission under Section 16 or sub-section (4) of Section 19, such person shall be deemed to be automatically suspended from his/her office for the duration of such detention, and if a case is filed under Section 18, for the duration until the final disposal of such case. A person under such suspension shall not be eligible for appointment or work in any capacity in any government office or public body, or in a position dealing with funds obtained as loans or grants in any way to the Government of Nepal. 18. Initiating a Case: If, from the proceedings conducted under this Act and the investigation and inquiry conducted in relation to the accusation of corruption against a person holding a public office, there is reasonable cause to believe that he/she has committed such offense, the Commission may order an Investigating Officer or any officer of the Government of Nepal to initiate a case under prevailing law. Amended by the Second Amendment.. Chapter ? 5

Investigation and Inquiry

19.

Added by the Second Amendment. (c) To order the police to arrest and produce before the Commission any person who, after receiving notice to appear before the Commission, fails to appear within the time limit set by the Commission, wherever he/she may reside or be present.

(2) After recording the explanation or statement of a person accused of abuse of authority, the Commission

may release him/her on a personal bond to appear when required or keep him/her on bail/date.

(3) If there is reasonable cause to believe that a person against whom proceedings have been initiated for corruption, while remaining in office, may destroy or conceal evidence against him/her or may obstruct or hinder investigation and inquiry, the Commission may send a directive to the Government of Nepal or the relevant public body, as the case may be, to suspend such person from office.

(4) If there is any reasonable cause to believe that a person against whom proceedings have been initiated for corruption may abscond and go missing, or if a loss or damage is evident, the Commission may demand a deposit or surety from him/her under prevailing law, and if such deposit or surety is not provided, may detain him/her.

(5) If the Commission has sent a written request to an office or a person to produce any document or any other thing or provide information on any matter, or has ordered any person to appear before the Commission:-

(a) If such office does not produce such document or thing or provide information within a reasonable time as directed, the Commission may give direction to the concerned Minister or public body to initiate departmental action against the chief officer of the relevant office.

(b) If such person does not produce the document or thing or provide information within a reasonable time as directed, or fails to appear before the Commission, the Commission may impose a fine of up to one thousand rupees.

(6) If, even after departmental action or fine under sub-section (5), an office or person fails to comply with the Commission's order, the Commission may issue an arrest warrant to arrest and produce the chief officer of that office or such person, and obtain/ensure production of such document or thing or necessary information from him/her.

If such officer or person arrested does not produce such document or thing or provide information, the Commission may order him/her to be detained for up to a maximum of seven days.

(7) If the Commission has given a direction for departmental action or made a decision to impose a fine under sub-section (5), and the chief officer of the relevant office or the concerned person submits a petition stating reasonable cause for not being able to comply with the Commission's order and arguing that such action or fine should not be imposed, the Commission may, if the cause appears satisfactory, cancel such direction or fine order.

(8) The Commission shall have the authority, as necessary, to search or cause to search any place under prevailing law, and while conducting such search, to take possession of any object, paper or file deemed necessary, or to copy such paper or file.

(9) Except where the Commission does not have jurisdiction to conduct proceedings under this Act, a person holding a public office shall not be exempt from disclosing any information on the grounds of confidentiality in proceedings before the Commission.

(10) Any body or official conducting investigation proceedings relating to abuse of authority must keep confidential, without open proceedings that come to public notice, matters concerning the person accused of abuse of authority, except for general evidence of what he/she has done or not done.

(11) If a complaint is received against a person holding an office subject to political appointment or a member of Parliament regarding abuse of authority, the Commission shall conduct an inquiry into such complaint

confidentially. If, during such inquiry, grounds appear to substantiate the matters mentioned in the complaint, the Commission shall, conducting proceedings according to this Act Amended by the Second Amendment., inform the Prime Minister in the case of a person holding an office subject to political appointment, and the Speaker or Chairperson of the concerned House in the case of a member of Parliament, along with the details of the inquiry. Amended by the Second Amendment.(12) If, during the course of investigation and inquiry under this Act, it appears that the accusation cannot be proved based on the evidence collected, the Commission may prepare a reasoned note regarding the relevant complaint and file it. Provided, however, that if any new evidence is found later, this Section shall not be deemed to prevent the recommencement of investigation and inquiry proceedings regarding such complaint. Added by the Second Amendment.(13) If a decision is made to file a complaint under sub-section (12), notice thereof shall be given to the concerned person holding a public office and the complainant.

Added by the Second Amendment.(14) Notwithstanding anything written elsewhere in this Act, if during investigation and inquiry into corruption, improper conduct is found, action shall be taken for improper conduct; and if during investigation and inquiry into improper conduct, corruption is found, action shall be taken for corruption. Added by the Second Amendment.(15) The Commission may present an accused who assists in the investigation work under this Act as its witness and grant full or partial exemption from punishment in the demand/claim for punishment. Provided, however, that if the assistance provided by him/her is not corroborated by other evidence or proof, or if he/she gives a statement before the relevant court inconsistent with the assistance provided to the Commission, a case may be refiled against him/her notwithstanding anything written in this Act or any other prevailing law. 20. Appointment of Investigating Officer: (1) The Commission may appoint or designate Added by the Second Amendment., as necessary, any Commissioner or any employee of the Commission or any employee of the Government of Nepal or a public body as an Investigating Officer to conduct preliminary inquiry or investigation and inquiry into an offense of improper conduct or corruption under this Act. Provided, however, that when the Commission needs to appoint or designate Added by the Second Amendment. an employee of a government or public body as an Investigating Officer, it shall do so after consulting, as the case may be, with the chief officer of the office of the Government of Nepal or the relevant public body. (2) An Investigating Officer appointed or designated Added by the Second Amendment. by the Commission under sub-section (1) may exercise the powers conferred upon the Commission regarding investigation and inquiry under this Act. Chapter - 6 Miscellaneous Amended by the Second Amendment.21.

May Obtain Services: (1) The Commission may, as necessary, obtain the services of an expert in the relevant subject matter or a specialized body while conducting investigation, inquiry and other related proceedings under this Act and other prevailing laws. (2) To obtain services under sub-section (1), the Commission shall appoint the relevant expert or specialized body, and while making such appointment, the Commission shall make an agreement specifying the work to be done by such expert or specialized body, the powers to be exercised, the conditions to be followed, the procedures, and the remuneration and other facilities to be received by such expert or specialized body. (3) If the Commission requires the services of an employee of the Government of Nepal or a specialized body, notwithstanding anything written in any prevailing law, such employee must be deputed to the Commission for the duration requested by the Commission. Added by the Second Amendment.21a. Provision of Employees: The Government of Nepal shall provide employees according to the approved staff positions for the operation of the Commission. 22. Chief Commissioner to Assign Work: If, besides the Chief Commissioner, other Commissioners are also appointed to the Commission, the Chief Commissioner shall have the authority to allocate work and assign tasks to each Commissioner. 23. Confidentiality of Information: (1) The information or intelligence received by the

Commission in the course of investigation and inquiry into abuse of authority under this Act, and the evidence examined or collected by the Commission, shall not be disclosed to the public or the media. Provided, however, that the Commission shall not be prevented from publishing information or details necessary for investigating and inquiring into abuse of authority, submitting a report thereon, or initiating proceedings. (2) Notwithstanding anything written in sub-section (1), the Commission may also conduct inquiry, investigation and investigation into any matter of public importance deemed appropriate by the Commission openly. Added by the Second Amendment.23a. May Obtain Details or Freeze Transactions: (1) Notwithstanding anything written in any prevailing law, if during investigation into an offense of corruption, information is revealed from any source that a person has conducted transactions or has an active account in any bank or financial institution in Nepal or abroad, the Commission may order the freezing of such transactions or account. According to the Commission's order, the concerned bank or financial institution must freeze such transactions or account.

Provided, however, that if it is necessary to freeze such transactions or account with a bank or financial institution located abroad, the Commission may cause the freezing of transactions or account operation through diplomatic channels. (2) If transactions or accounts are not frozen as per sub-section (1), the Commission may impose a fine of up to fifty thousand rupees on the chief of the concerned bank or financial institution located in Nepal. (3) The Commission may, if deemed necessary during the investigation, request details of or freeze the property of a person holding a public office. Added by the Second Amendment.23b. May Order Not to Issue or to Seize Passport: Notwithstanding anything written in any prevailing law, based on the gravity of the offense, the circumstances, situation and magnitude of the offense committed by the accused, and the punishment that may be imposed if convicted, the Commission may order the relevant authority not to issue a passport to an accused or to seize the passport if already issued. Added by the Second Amendment.23c. May Restrict Leaving a Place: If proceedings have been initiated under this Act against a person holding a public office, the Commission may, considering the gravity of the offense committed by such person, the circumstances or conditions under which the offense was committed, and the quantum of punishment upon conviction, issue an order restraining an accused from leaving any place or going to any place without the Commission's approval. Amended by the Second Amendment.24. Punishment for Obstruction: If anyone obstructs or opposes the work related to investigation and inquiry under this Act, the relevant court may, based on the Commission's report, impose a fine of up to five thousand rupees or imprisonment for up to six months or both. Amended by the Second Amendment.24a.

Provisions Relating to Service of Summons/Notice: (1) Notwithstanding anything written in any prevailing law, when a summons/notice needs to be served in the name of a foreign person regarding an offense under this Act, if such person has any kind of office or representative within Nepal Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066., the summons/notice shall be served in the name of such office or representative, and service so effected shall be deemed to be valid service. (2) If there is no office or representative under sub-section (1), if such person has a principal place of business, a permanent residential address, or any address provided by him/her for correspondence at the time of transaction, the summons/notice shall be served at such address via telex, telefax or other means of telecommunication capable of producing a record, or by registered post, and service so effected shall be deemed to be valid service. (3) Notwithstanding anything written in sub-section (1) or (2), if there is a separate provision in any treaty to which the Government of Nepal or Nepal Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066. is a party regarding service of summons/notice in the name of a person residing abroad, this Section shall not be deemed to prevent service of summons/notice as per that provision. Added by the Second Amendment.24b. Publication of Notice: If, while sending a notice or serving a summons/notice

in the name of a person under this Act or other prevailing law, a report is received that such notice could not be served or summons/notice could not be delivered due to the address of such person being untraceable or for any other reason, then, notwithstanding anything written in any prevailing law, a public notice shall be published in a national level newspaper (in an English daily for foreigners) at least twice, giving a time limit of up to thirty days for such person to appear, along with a brief description of the subject matter if an investigation has been conducted by the Commission or a case has been filed in court, and upon such publication of notice, such person shall be deemed to have been duly informed or served with summons/notice, notwithstanding anything written in this Act or other prevailing law. Added by the Second Amendment.24c.

Punishment for Filing False Complaint: If any person is proved to have filed a false complaint against any person holding a public office or any public servant or person with the intention of causing loss or damage or trouble to someone without reasonable cause for filing the complaint, the Commission may impose a fine of up to five thousand rupees. 25. No Suit Against the Commission, Commissioners or Employees of the Commission: No suit shall be instituted in any court against the Commission or any Commissioner or employee of the Commission, or any employee or office deputed by the Commission or delegated with authority by it, for any act done in good faith under this Act. 26. Commission May Take Assistance of Other Offices or Employees: (1) For the purpose of investigating and inquiring into abuse of authority, the Commission may take the assistance of any department, office of the Government of Nepal or any public body, including the Police Headquarters, the National Investigation Department and offices under them, and may utilize the services of any employee of such department, office or public body. (2) If, from the nature of the abuse of authority being investigated and inquired into by the Commission, it appears necessary to consult any expert working in any department, office or public body, or to involve such expert in the investigation and inquiry, the Commission may request the relevant department, office or public body to depute such expert to the Commission for a certain period. (3) If the Commission requests assistance under sub-section (1) or (2) from any department, office, public body or any employee working therein, it shall be the duty of such department, office, public body or employee to provide assistance to the Commission. 27. Repealed by the First Amendment. 28.

Commission May Give Suggestions: (1) The Commission may, based on facts that come to its notice in the course of its work and proceedings, give suggestions to the relevant office, official or public body as follows:- (a) If the Commission feels that any law, decision, order or action is impractical, undesirable or inconsistent, to give a suggestion for amendment with reasons, (b) If the Commission finds it necessary for the Government of Nepal or any public body or any office or official thereof to exercise caution or take action in any matter, to suggest what kinds of caution or action are appropriate, (c) If the Commission feels that any practice or working method of the Government of Nepal or any public body is defective, to give a suggestion with reasons and grounds to rectify it and to resolve the problems arising from it. (2) Details of suggestions given under sub-section (1) shall also be included in the annual report of the Commission Deleted by the Republic Strengthening and Amending Some Nepal Laws Act, 2066.. Amended by the Second Amendment.29. Case May Be Filed Against Retired Person: (1) Nothing written in this Act shall be deemed to prevent the Commission from taking action or filing a case against a person holding a public office, regarding abuse of authority committed by him/her while holding office, even after he/she has retired from office. (2) Notwithstanding anything written elsewhere in this Act, if any officer holding a public office had committed abuse of authority while he/she was in such office, and it was not possible to take immediate action under this Act in that regard, nothing shall prevent action being taken or a case being filed against him/her under this Act after he/she retires from such office, by whatever means. Added by the Second Amendment.29a. No Bar

to Proceeding with and Disposing of Case: Notwithstanding anything written in any prevailing law, even if an accused or defendant dies before or after filing a case under this Act, there shall be no bar to proceeding with and disposing of the case against such accused or defendant. Added by the Second Amendment.29b. Property to be Confiscated: If it is proved that a person holding a public office, by committing corruption according to this Act or other prevailing law, has kept property acquired through such means, along with other property increased from it, in his/her name or in the name of another person, such property shall be confiscated.